

Court No. - 21

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. It is evident from the material placed on record that the transformer through which the petitioner was supplied electricity got burnt in 1995. The boring had also failed in the same year. The specific case of the petitioner is that he had not consumed single unit of electricity after 1995. He has now been issued a recovery certificate dated 31.01.2023 seeking to recover Rs. 10,16,977/- and other charges.

2. Having regard to the facts of the case, we direct respondent no. 3 to file affidavit and disclose why temporary disconnection followed by permanent disconnection was not effected despite specific provisions in this behalf under Clauses 4.36 and 4.38 of the U.P. Electricity Supply Code, 2005. He will also clarify as to how dues of electricity for the said period would be recovered at this distance of time, contrary to the mandate of Section 56(2) of the Electricity Supply Act, 2003.

3. List as fresh on 25.05.2023.

4. In the meantime, recovery in pursuance of the impugned recovery certificate shall remain stayed.

5. Shri Paras Nath Rai, learned counsel for the respondent-Electricity Department will communicate the instant order to the concerned respondent for due compliance.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.5.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras Nath Rai

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Sri P.N. Rai, learned counsel for the respondent-Electricity Department, prays for further time to complete his instructions.
2. List as fresh on 10.7.2023.
3. Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.5.2023

Jaideep/-

Chief Justice's Court

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras Nath Rai

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

Shri Neeraj Srivastava, learned counsel for the petitioner, learned Standing Counsel for State-respondent and Shri P. N. Rai, learned counsel for respondent Nos. 3 & 4.

Learned counsel for respondent Nos. 3 & 4 are directed to file counter.

List this case in the week commencing 7.8.2023.

Further adjournment may not be granted as a matter of right.

Interim order granted earlier shall continue till the next date of listing.

Order Date :- 10.7.2023

Ravi Prakash

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, C.J.)

Chief Justice's Court

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

List this case in the week commencing 25.9.2023.

Interim order, granted earlier, to continue till the next date of listing.

Order Date :- 9.8.2023

RK

(Ashutosh Srivastava, J) (Pritinker Diwaker, CJ)

Court No. - 3

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras
Nath Rai

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

List this case on 17.10.2023.

Interim order, if any, is extended till the next date of listing.

Order Date :- 25.9.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras
Nath Rai

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

List this case on 17.11.2023 in the top ten cases.

Order Date :- 7.11.2023

vkj

Court No. - 3

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras
Nath Rai

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

List this case on 30.11.2023 amongst the top ten cases.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 17.11.2023

vkj

Court No. - 3

Case :- WRIT - C No. - 16169 of 2023

Petitioner :- Vijendra Singh

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Neeraj Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Paras
Nath Rai

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

List this case on 18.12.2023 in the top ten cases.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 30.11.2023

M.S. Ansari

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)